

How can we make MMP work better?

The SOFA constitutional change.

The Issue

The strength of MMP is that it provides representation for more platforms than just the two major parties.

The weakness of MMP is that after the election it destroys the integrity of party platforms.

Each seat in the house can currently vote on a motion, effectively to Support, Oppose, Free vote, or Abstain. These SOFA options are controlled and exercised by the party whips at the whim of the party caucus and need have no relationship to any pre-election published position.

Currently, the formation of a coalition forces distortions or abandonment of the published platforms, and so we end up with an electorate in which no voter at all can ever see their vote translated into the promised action. Their chosen candidate or party cannot keep their promises. A most unsatisfactory state of affairs.

This is due to the now conventional view that no party can govern reliably unless they have a guaranteed majority in the house at all times.

But such an approach goes diametrically against the principle of MMP, which is to avoid a "winner takes all" approach to our legislation. Now, this coalition approach has evolved over the decades since MMP was introduced, as post-election negotiations became customary and the jockeying for positions virtually ensured that no platform would survive as the electorate had been 'promised'.

Hence, our politicians are no longer trusted, precisely because this weakness in our use of MMP has made it so. That's one problem that must be solved.

MMP avoids the problem of FPP, that the absolute majority enables a runaway caucus; but loses the advantage of FPP, that an integrated change programme can be formulated, and once sold to the electorate can then be implemented as a whole, both social changes and the taxes to implement them.

Solution

This proposal is for a change: that all parties' committed SOFA options (Support, Oppose, Free vote, Abstain) in each significant issue, be negotiated as a public spreadsheet for the whole three years until 28 days before the election, and then enforced as the whips' instruction on how to vote in the house. Thus, the public's election choices would have real relevance. The electorate would have a binding say in the parliamentary votes.

How would it work?

The Platform Commission

This would be a small permanent body, charged with maintaining the public table (Appendix) of all the parties' positions on all their own and each other's policies, as they would be voted by the whips after the next election. The table would be started afresh after each election, thus allowing three years for the parties' policy committees to form, negotiate, modify and then publicise their positions by informing The Commission of the platform or its modifications. For new policies, The

Commission would add them to the table, and require each every other party (or independent as a party of one) to record its position on that policy. "F" choices would be permitted only for the established matters such as abortion, euthanasia and capital punishment. The Commission would amend and publish the table, and allow parties to negotiate, reconsider and amend their platforms. A party would not be able to stand unless they publish their position on every matter in the table. Twenty eight days prior to commencement of voting The Commission would freeze the table and pass it to the Clerk of the House.

The nature of a table 'matter'

To be valid table entries, matters would have to be complete and stand alone. A recent example "CGT to fund three free GP visits" which could be written as two entries, one for 'CGT' and another for 'three GP visits'. But if either were to get up without the other, it would generate a practical impasse, which would be avoided by requiring that such interrelated decisions be folded into a single matter in the table.

So, a matter is any item or series of items that a party may bundle for the House to deliberate on and a question or series of questions to be put. From the trivial: "That this House regrets the substitution of 'reach out' for 'contact.'" to the far reaching: "provision of a reasonable standard of living" which would have allowed Savage to get his program in under this system with a minority government, despite none of the detail being clear at the time of the election. But these days we would expect, during the three years' table publicity, that such a policy would not gain support until it had been expanded at least into: "A series of bills to provide affordable housing, financial support for unemployment and certain similar situations, funded by state borrowings and/or taxation measures". When enough detail had been added, the other parties could tabulate an "S" into their cells — which would require those elected Members to support every enabling measure and action that fairly supported even such a large and far-reaching policy.

Why a Spreadsheet

Because there are probably very few people with the time, the memory, or the analytic skills to be able to sort out: 'party A is for 3-strikes but against railway; party B is for both 3-strike and railway ... ' for all the issues, for every party. A spreadsheet would provide that; and it can be made with a compact, understandable format. This may help reduce the over-concentration on a few trumpeted, unreliable positions. The voters could see at a glance the positions of the parties. See example in Appendix.

Why three full years

Two main reasons: Negotiation and Education.

Under MMP negotiation and coalition are essential but to be truly workable the focus should be on policies, on the 'what' rather than the 'who'. The parties' policy committees need time to publish, obtain public feedback, trade support (we'll support 'free bus travel' if you support 'school lunches') and gauge support when The Commission immediately publishes the changes.

An educated electorate is a widely held requirement for fair and effective elections. The three year lead up gives time for the voters to far better understand the interplay between parties and policy items — time to understand, to question, to discuss. So let's try genuinely to achieve 'an educated electorate'; given the way the proposed mechanism would work, we can expect considerable horse trading and changes to platforms as coalitions of policies separate and reform; and the electorate

needs time to get their heads around it all, because if the policies matter, voters must understand or we end up with the 'donkey vote'.

The Clerk of the House

Once the election results are confirmed, the Position Table would be passed to the Clerk of the House to set up the sequence of Order Papers. The Clerk would rank the tabled matters by the number of "S" tabulated entries counted across all seats. Then the most electorally 'popular' matters would be dealt with first, which accords well with giving the electorate much more control and certainty. And if issues with low support (fewer "S" votes) didn't make it to the floor within the term, that too would represent the public view of their importance.

The Whips

As each row in the table has been debated and comes up for vote, the 'votes' (S,O,F,A) are counted against the number of seats elected, which is what the whips call; modified by the "F" calls when the elected members of that party may exercise 'conscience votes'. The party votes in the house would be exactly as they promised before the election. The voters will get exactly the behaviours that they elected, because when a question is put the whips effectively just read their numbers against the table cell entry. Yes, somewhat mechanistic; but if we want certainty, with politicians keeping their promises, being mechanistic is the consequence, and a most desirable one, compared with the current confusion and reverses. No more 'vote for one thing and get another'.

Free votes

Free votes are uncertain. They can increase the Yes counts and get marginal issues over the line, but for certainty in legislation they cannot be relied on, and so for giving the electorate a reliable program, free votes would count as zero in the table. Free votes tabled for non-conscience matters would be taken as Abstain in the tabulations and the House votes.

Failed matters

For every matter, as it is reached on the list, the matter must be read into the record and a vote taken. If it gets the numbers, the matter proceeds, otherwise it fails and the next matter is taken.

By-elections

Let us be clear, the intention of these changes is that the electorate would know, absolutely what their vote will mean for the full, three-year term. A by-election must not change that position, as it would invalidate the intention of the nation of voters. The party may nominate a replacement electorate representative for constituent service, but there is no need for a vote - that die was cast at the commencement of the term. This is another significant change from current practice, but absolutely required to preserve the integrity of this proposed general election process.

Emergency legislation

The House must be able to deal with genuine emergencies. There would need to be provision for any member to move for emergency action which would require the whips to show 80% of elected numbers in favour. The emergency legislation would then be debated with an 80% majority required on each vote. In a true emergency we don't want to empower actions that are poorly supported.

Change of circumstance

The House must be able to deal with matters that have significantly changed their nature since the election in such a way that the tabled policy action must be either altered or abandoned. In such cases, having an invalidating change of environment, any supporting member would move (with 80% requirement) that the matter be abandoned or modified; with 80% agreement of the modification, then with the modified matter being decided by the tabled numbers as before.

Private Members bills

There will be a "P" column indicating the matter is Private. The Commission would be required to indicate the member's party vote in the table, which their policy committees would be free (up to 28 days before voting) to amend. In the final analysis, the party need not support their Private Member's bill. If the proposer is not elected The Clerk would read the speech into the record and the matter would be debated, the legislation (if any) considered through its stages, and voted on, the whips driven by the table as ever. The parties would have already publicly considered the matter and the degree of their support, and to keep faith with the public they must follow their undertaking. It does not lapse because the proposer is absent.

Nonsense matters

Trivial matters would get simply rejected by the other parties all assigning them "O", which the system would put them to the bottom of the Order list.

Polls

'The table' could become a vehicle for illustrating the parliamentary consequences should a poll's 'predictions' eventuate, given that the parties' platforms are clearly tabulated. Because the proposed table is designed so that it dictates the parliamentary program once the election outcome is known, it could provide the same function for an hypothetical result. The Platform Commission could provide copies of the table to authorised media so they could show exactly how the next three years would play out if the poll turned out to be accurate. There is an example in Appendix B.

A Party failing to get even one member elected

Two outcomes: their column would effectively disappear - all their counts would be zero; however, any legislation or other matter they had introduced, the other parties would have considered and publicised whether they support it or not. As with Private Members bill, the Clerk would read the matter into the record, the matter would be debated and any resulting legislation considered through its stages accordingly.

Choice of Prime Minister

The whole House would in this system probably choose the PM from among all Members, by selecting (I would suggest by a free vote) who to recommend to the Governor General, because the Governor General is empowered to appoint as PM whoever demonstrates, as a minimum, that they have support for confidence-and-supply. This might be a significant point on which party loyalties and affiliations turned.

Snap elections

Snap elections would not happen. There would be no call for them, because Prime Ministers under this proposal would have no policy mandate, since the SOFA table is fixed, and calls for resignation

over policy become meaningless, but if passed the house could vote in another. There would doubtlessly be other changes to the Cabinet Manual when this proposal is adopted.

Ministers

Because the policies would be predetermined, Ministers would not be required to design policy, only to run production in that Ministry, so appropriate experience of management in that field would be the most relevant. Currently they must be drawn from the governing party or coalition, which could in principle have only 20 seats and unlikely to have the required mix of advanced skills in every area. We should consider the Minister being appointed for the Term, based on their competence, not necessarily drawn from the elected parliament. This would be the Swedish practice.

International comparison

The Swedish system, by means of a number of mechanisms, readily supports minority government. In addition, Ministers are appointed for competence, and need not be elected members of the House. Indeed while ever appointed as a Minister, they cannot vote - a substitute takes their place in the chamber and votes in their stead. Having been elected does not necessarily confer expertise or skill at dealing with the issues of managing a ministry.

Switzerland allows referenda on proposed legislation. So the people decide the outcome of some issues, one by one. This differs from this proposal for 'table voting' in two particular ways: the considerable overhead of regular referenda is avoided for government and for electorate; and this proposal is less subtle as voters get to choose only between blocks of policies rather than the policies individually.

Comment

The underlying philosophical shift is that coalitions would no longer be of parties, but of the policies themselves, formed in public before the election and thus the public would automatically have full disclosure.

Because the table defines the policy coalitions, the house would be able to design and enact good legislation, able to debate and craft the 'how' without arguing about the 'what'.

As soon as the result was announced, the electorate would know what would be dealt with, and what the numbers would be when that matter came up. The time of the house would not be wasted by unpopular motions — they would be pushed so low on the Order list they might never come up.

'Truth in advertising' is enforced. The parties disclose their (changing) commitments for three years and that becomes their only parliamentary position. Automatic truth!

This all may seem unduly complicated because the complication is visible rather than hidden, but it is hardly more so than now. The voting is preordained. Party Coalitions are not at all necessary.

The 'method' depends on it being general practice for party policy to be set by a committee that rarely includes the candidates. Even while the house is newly in the term, the policy committees may be hard at work preparing for the next election.

We should expect that as soon as the parties so clearly see how their platforms compare, they will be out polling and canvassing, and fine tuning, and negotiating, from day two.

It's also possible that election advertising may lead the public in their ignorance to strongly favour some decidedly unhelpful policy. We might hope that the opponents to the policy would mount an attractive but careful education campaign to counter that attitude. The Platform Commission would also hold and publish the parties' negotiated key terms and consequences of each matter. We could expect these to initially be fluid and strongly contested, but to become settled over time.

Parties would be free to produce their own publications with their reasons for their positions, their particular qualities (as if that would matter under this proposal) and other matters they wished.

Because every matter on the list *must* be legislated as each party announced, having a clear majority certainly means that party gets its motions carried, and probably gets them their choice for PM and ministers but not the ability to change their platform.

There is a risk that the electorate may become overloaded with data, and 'turned off'. However, I consider this may be less of a problem than the way the current electorate is ignorant, and 'turned off'. Having access to the 'state of play' and the media interplay (based on data rather than surmise) throughout the period ought to provide a somewhat truer outcome than is now the case.

So, in summary: MMP should in my view require minority government, with coalitions forbidden. All parties on the cross benches. Each party absolutely unable to change their positions from the table, which they have had three years to settle.

That way, the people would get the promises or nothing (which in many cases might be an improvement). There could be no 'broken promises' as the house vote would be simply table driven. We should see more cooperation pre-election as 'they' jockey to get cross-party agreement on key matters, and hence real promises for real outcomes that the people have some say in, at the ballot box. We should expect pre-election negotiation between parties on what their policies will be and how legislated, and what matters they agree on and with whom. Then the voters will know that their vote will deliver what they think they want from their choice of candidate or list party if the matter gets the numbers in the house, and that their choice of party will not lead to the party voting against their promises. There can be no deadlock. But unless there are sufficient numbers 'pre-declared' or at least not opposed, a bill will not get up. And nor should it. At present, parties announce (not entirely reliably) with whom they will form coalitions, so I propose merely increasing the granularity and ensuring the choices of the electorate, for the running of the next three years, are automatically enforced.

There it is — ready for the constitutional lawyers to knock into shape.

Appendix A: Sample growing Policy Table produced by Platform Commission from Parties' Input:

Policy Table							
	Private	Member's	matter				
	Party A	Party B	Party C	The New World Party	The Old World Party	Fred Jones	
Free buses everywhere	F	O	S	F	A	S	
Discounted Office Biscuits	O	S	S	O	F	S	
Income above \$200,000 taxed at 51%	O	F	A	S	O	S	
no GST on basic foods	S	A	F	O	S	S	
Evs 10% purchase subsidy	A	S	O	F	S	S	
Rooftop solar must have batteries	S	O	S	A	F	S	
Income above \$150,000 taxed at 4%	S	S	S	O	A	O	
This house supports the death penalty	P				F		

Appendix B: showing how the results of a poll would illustrate exactly what the house Order sequence would be, and what motions would be passed. Truth in advertising. The Free votes would not be allowed (under present rules) and count as Abstain for non conscience matters

Party Names	Private Member's matter	Party A	Party B	Party C	The New World Party	The Old World Party	Fred Jones	Parliamentary vote	Carried, Yes or No						
Latest Poll Numbers (or final election result)	38	44	19	4	11	7	123			Counts for each item (not usually shown)					
Income above \$150,000 taxed at 4%	S	S	S	O	A	O	101	Y	38	44	19	0	0	0	
Discounted Office Biscuits	O	S	S	O	F	S	70	Y	0	44	19	0	0	7	
Rooftop solar must have batteries	S	O	S	A	F	S	64	Y	38	0	19	0	0	7	
<u>Evs</u> 10% purchase subsidy	A	S	O	F	S	S	62	Y	0	44	0	0	11	7	
no <u>GST</u> on basic foods	S	A	F	O	S	O	49	N	38	0	0	0	11	0	
Free buses everywhere	F	O	S	F	A	S	26	N	0	0	19	0	0	7	
Income above \$200,000 taxed at 51%	O	F	A	S	O	S	11	N	0	0	0	4	0	7	
This house supports the death penalty	P	O	O	O	O	F	O	0	N	0	0	0	0	0	0

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